

Urzi v. Board of Education for the Borough of North York

30 O.R. (2d) 300
116 D.L.R. (3d) 687

ONTARIO
HIGH COURT OF JUSTICE
R. E. HOLLAND J.
9TH OCTOBER 1980.

Negligence -- Occupier's liability -- Duty of care --
Invitees and licensees -- Whether occupier owes same duty of
care at common law to both invitees and licensees.

Negligence -- Occupier's liability -- Unusual danger --
Plaintiff slipping and falling on defendant school board's icy
walkway -- Whether icy walkway an unusual danger.

The plaintiff slipped and fell on an icy walkway owned by the defendant school board. At the time of the accident, the walkway was covered with a thin layer of ice covered by a residue of snow left after an employee of the defendant had shovelled the snow. The employee had not spread sand or salt on the walkway. In an action by the plaintiff against the defendant for damages for personal injuries, held, there should be judgment for the plaintiff. There is now no difference at common law between the duty owed by an occupier to an invitee and that owed to a licensee. The occupier's duty to both categories is to take reasonable care to avoid a foreseeable risk of harm from any unusual danger on the occupier's premises of which he has actual knowledge or of which he ought to have knowledge because he was aware of the circumstances. The condition of the walkway was or should have been known to the defendant and, in the circumstances, it was an unusual danger which the defendant was negligent in not rectifying.

[Bartlett et al. v. Weiche Apartments Ltd. (1974), 7 O.R. (2d) 263, 55 D.L.R. (3d) 44, folld; Mitchell v. Canadian National R. Co., [1975] 1 S.C.R. 592, 46 D.L.R. (3d) 363, 6 N.S.R. (2d) 440, 1 N.R. 344; Campbell v. Royal Bank of Canada, [1964] S.C.R. 85, 43 D.L.R. (2d) 341, 46 W.W.R. 79; Veinot v. Kerr-Addison Mines Ltd., [1975] 2 S.C.R. 311, 51 D.L.R. (3d) 533, 3 N.R. 94; Phillips v. Regina Public School District No. 4 Board of Education et al. (1976), 1 C.C.L.T. 197, refd to]

Negligence -- Remoteness of damage -- Plaintiff fracturing left knee when she slipped and fell on defendant's icy sidewalk -- Defendant negligent -- Three years later plaintiff's left knee giving way while stepping down a step -- Plaintiff falling and breaking thigh -- Second fall and injury attributable to original negligence -- Plaintiff entitled to recover damages from defendant for injuries sustained in second accident as well as first.

[Wieland v. Cyril Lord Carpets, Ltd., [1969] 3 All E.R. 1006, refd to]

Limitation of actions -- Public authorities -- Plaintiff slipping and falling on defendant school board's icy walkway -- Plaintiff issuing writ more than six months after accident -- Legislation requiring school board to keep premises in proper repair -- Snow and ice removal on walkway not actions inherently of public nature -- Rather of internal or operational nature having predominantly private aspect -- School board not entitled to protection of six-month limitation period of Public Authorities Protection Act, R.S.O. 1970, c. 374, s. 11 -- Schools Administration Act, R.S.O. 1970, c. 424, s. 33, para. 8.

[Berardinelli v. Ontario Housing Corp. et al., [1979] 1 S.C.R. 275, 90 D.L.R. (3d) 481, 8 C.P.C. 100, 23 N.R. 298, folld; A.-G. Ont. v. Palmer et al. (1979), 28 O.R. (2d) 35, 108

D.L.R. (3d) 349, 15 C.P.C. 125; revg O.R. loc. cit., D.L.R. loc. cit., C.P.C. loc. cit., distd; Moffatt et al. v. Dufferin County Board of Education et al., [1973] 1 O.R. 351, 31 D.L.R. (3d) 143; Piuti v. Board of Education of City of Toronto (1974), 6 O.R. (2d) 172; Levine v. Board of Education of City of Toronto, [1933] O.W.N. 152; affd ibid., p. 238, not folld]

ACTION for damages for personal injuries.

A. M. Kwinter, for plaintiff.

J. Liswood, for defendant.

R. E. HOLLAND J.:-- On January 15, 1973, the plaintiff slipped and fell on property occupied by the Board of Education for the Borough of North York; hence this action.

Mrs. Urzi is now 47 years old and is a married woman with five children. In 1973 one of the children was a pupil at Gulf Stream Public School, operated by the defendant. This child and others from the school were going on an outing by bus on January 15th, and Mrs. Urzi accompanied her to the school to carry luggage and see her off. The school faces south with the westerly entrance shown in photograph A, ex. 1. She walked up the steps from the street and entered the school by the westerly entrance. She proceeded through to the back and exited through the back door so that the luggage could be loaded on the truck that was parked at the rear. The back door was a fire door that opened from the inside but upon being closed remained locked from the outside. Since she was unable to get back into the school she decided to walk around the west side to the front to go home. She walked west from the back door, then north and then took the walkway that runs from the parking-lot at the west of the school to the front doors and stairs. She alleges that it is while she was walking east along this walkway that she slipped and fell. Mrs. Urzi testified that the walkway was icy with a thin accumulation of snow on top of the

ice. She said that she was opposite the three small bushes shown on photograph A, ex. 1, that is, some distance west of the entrance, when she fell. She fell forward on her left knee and suffered a severe injury with which I will deal later. She slowly recovered from this injury but was left with some continuing disability in the knee and leg. In 1976 she went to Italy and fell in a railway station fracturing her left hip.

It is alleged that the fall in Italy was caused by the weakness in the left leg and knee. As a result of these two injuries Mrs. Urzi claims that she has been permanently and substantially disabled. The defendant takes the position first, that the plaintiff fell not on the walkway but on an accumulation of snow and ice between the walkway and the top of the steps and I am asked to infer that Mrs. Urzi was cutting the corner to gain access to the steps and so to the street; second, that even if she did fall on the walkway there was no negligence on the part of the servants or agents of the defendant in that the walkway was clear of snow and ice; third, that even if it was icy the condition that existed was not an unusual danger and fourth, that even if it was an unusual danger then the plaintiff either voluntarily assumed the risk of injury or was herself negligent. The defendant further submits that there was no connection between the fall in 1973 and the fall in Italy in 1976 and that even if there was the plaintiff was either volens or guilty of contributory negligence. In any event, the defendant takes the position that the action is barred by reason of s. 11 [am. 1976, c. 19, s. 1(1) and (2)] of the Public Authorities Protection Act, R.S.O. 1970, c. 374.

I will deal with the issues in order.

Liability for the fall on January 15, 1973

I start by observing that this accident happened over seven years ago and the memories of the witnesses are understandably hazy. Mrs. Urzi said that she did not remember seeing any sand or salt on the walkway. She was in no hurry and was aware of the icy condition of the walk. She denied that she tried to cut

the corner. She said that she encountered ice and snowy conditions on the roads and sidewalks leading to the school and she was careful as she walked along. Marie Banski is an independent witness who saw something of the events that morning. She said that it had snowed the day before although it was not snowing at the time and it was cold with snow and ice on the road. She was standing in the parking-lot south of the school, and she noticed the plaintiff walking along the walkway in an easterly direction towards the stairs. She looked away and on looking back saw the plaintiff on the ground on the walkway in the area of the shrubs as shown in the photographs, ex. 1. She said that she did not see her fall and that the plaintiff was on the walkway and not on the grass area. She went up to help and saw ice on the walkway with some snow on top. The front steps were clear enough as was the entrance to the school. She saw no salt or sand on the walkway. She went to the school for help. When she came back with the caretaker Mrs. Urzi was half on the sidewalk and half off the sidewalk to the south. Mrs. Banski said there was quite a bit of snow in the area beside the sidewalk. She said there was maybe two feet of snow in the grass area, that is, that there was a snow-bank along the side of the walkway. She saw the plaintiff crawling towards the snow-bank. John Dennis was the head caretaker at the time and was on duty. He said that on that morning he started work about 7 o'clock because it was a Monday and there had been snow over the week-end. He took a shovel and cleared off the front walk and steps and also the exit ways and entrance ways to the school. He said that there was sugary snow but he was not aware of any ice. He had finished with the shovelling by about 8 o'clock and then got a pail and spread about three pails full of salt in the areas he had shovelled. He had a mixture of sand and salt but only used this mixture for the parking-lots. The board also provided sand but the school was out of sand at the time and he had ordered sand from the board the Monday before this incident. Dennis testified that there were mounds of snow along the edge of the walkway. Some time after he had completed his work he was told by two pupils that there had been an accident. He went out and found Mrs. Urzi in the grass area; he said around one foot from the tree that is shown in photograph B on ex. 1. Later he said that she was about where he is shown standing in photograph B on ex.

1. I note that these two positions as described by the witness are a considerable distance apart. He helped Mrs. Urzi into the school where an ambulance was called. This witness was required to punch a time-card. This card was not produced at the trial to support his evidence as to time of arrival. On cross-examination Mr. Dennis agreed that under the snow there was some thin or very thin ice and that this ice was slippery before being spread with salt. He said that he spread the salt "reasonably thick" and agreed that the thicker the ice the more salt that is required. Susanne Young was a kindergarten teacher at the school at the time. Her kindergarten class was located immediately east of the most westerly front door of the school and in looking out the window at the front she noticed a woman on the ground on her knees and recognized Mrs. Urzi. She said that Mrs. Urzi was on the grass area in front of the gymnasium, that would be to the west of the front door, two to three feet from the walkway running parallel to the school and two to three feet from the landing leading to the steps. Thomas Wilson was the principal at the time. He parked his car in the parking-lot that morning and then walked along this walkway to the front door. He said that the walkway was shovelled and clear and he had no problem. After the fall he said the caretaker took him out to show him the condition of the walkway. He said the walkway had been shovelled and appeared dry. He did not remember any ice on the walkway. He did not remember seeing any salt on the walkway. He made a written report of the incident to his superintendent. This report was not produced at trial and a claim of privilege was made for the report at his examination for discovery. He testified that there was an accumulation of snow and ice about a foot deep right along the east-west walkway and also along the edge of the landing leading to the steps.

It is of some significance to me that part of Mr. Wilson's examination for discovery, which was read in by counsel for the plaintiff, reads as follows:

Q. Do you recall if there was any salt or sand on the walkway on the date of this accident?

A. I don't remember.

Q. Is that information available?

MR. WINSOR: [solicitor for the defendant] I have no information. If I obtain any I'll provide you prior to trial.

Counsel for the plaintiff was at no time advised of any evidence of the application of salt to the walkway prior to the calling of Mr. Dennis as a witness at trial.

I have come to the conclusion that Mrs. Urzi fell on the walkway itself in the place that she described, that is, in the area of the three bushes shown on photograph A, ex. 1. Her evidence in this respect is supported by the evidence of the independent witness Marie Banski and I think that it would be unlikely that she would attempt to cut the corner when she was faced with clambering over snow-banks a foot or more high along the edge of the walkway. It may well be that she crawled or slid over to the edge of the snow-bank quite possibly in an effort to use the bank as a prop to get back on her feet again and this may have led the witnesses Dennis and Young to give her position some distance south of the walkway when they saw her and to infer from that that she had fallen in the triangle between the east-west walkway and the top of the steps.

I have also come to the conclusion that she fell by reason of slipping on ice that was present at the time on the walkway. I find as a fact that the walkway was covered at the time with a thin layer of ice on top of which was a residue of snow left after the snow shovelling operation carried out by Mr. Dennis. No sand had been spread along the walkway. The sand had only been ordered the Monday before. A mixture of sand and salt was available but was used only for the parking-lot. I have come to the conclusion that at the time of this fall salt had not yet been spread along the walkway. None of the witnesses who used that walkway that morning, with the exception of Mr. Dennis, remembered seeing any evidence of salt. It may well be that it was spread on the walkway later but in all the circumstances I have come to the conclusion that it had not been spread at the time of the fall.

What then was the duty owed by the school to Mrs. Urzi? Until recently the Courts were required to consider the various categories descriptive of such a plaintiff. It appears to me that this categorization has been loosened by the authorities and that there is no difference between the duty owed to an invitee and that owed to a licensee: see *Mitchell v. Canadian National R. Co.*, [1975] 1 S.C.R. 592, 46 D.L.R. (3d) 363, 6 N.S.R. (2d) 440, and *Bartlett et al. v. Weiche Apartments Ltd.* (1974), 7 O.R. (2d) 263, 55 D.L.R. (3d) 44. In *Bartlett* the duty was put this way by Jessup J.A. at p. 267 O.R., p. 48 D.L.R.:

It is to take reasonable care to avoid foreseeable risk of harm from any unusual danger on the occupier's premises of which the occupier actually has knowledge or of which he ought to have knowledge because he was aware of the circumstances. The licensee's knowledge of the danger goes only to the questions of contributory negligence or volenti.

Arnup J.A. reviewing *Mitchell et al. v. Canadian National R. Co.*, supra, at p. 270 O.R., p. 51 D.L.R., suggested that the duty was as follows:

Did there exist, at the time and place of the accident, a combination of circumstances, known to the defendant, which taken together created an unusual danger, resulting in a foreseeable risk of harm to children in the position of this infant plaintiff?

Earlier in his reasons Arnup J.A. stated that from a consideration of the reasons in *Mitchell* the duty was presumably not confined to children.

There is no doubt that on the facts as I have found them the condition of the walkway was or should have been known to the defendant. The question that remains is did the condition that existed constitute an unusual danger. It certainly constituted a danger resulting in a foreseeable risk of harm to people in the position of the plaintiff, but was this danger "unusual"? Snow and ice is not unusual in Toronto in the middle of January but is snow and ice on a busy walkway in front of a school some

time after 9 o'clock in the morning unusual? It is a danger that is relatively simple to guard against, particularly when the snowfall was light, as was the case here. The danger was well recognized and the servants of the defendant were provided with all the necessary equipment, sand and chemicals, to deal with the problem.

The term "unusual danger" was considered by Spence J. for the majority in *Campbell v. Royal Bank of Canada*, [1964] S.C.R. 85 at p. 92, 43 D.L.R. (2d) 341 at pp. 347-8, 46 W.W.R. 79, as follows:

"Unusual danger" has been defined in the judgment given in the House of Lords in *London Graving Dock Co. Ltd. v. Horton*, [1951] A.C. 737, by Lord Porter at p. 745, as follows:

"I think 'unusual' is used in an objective sense and means such danger as is not usually found in carrying out the task or fulfilling the function which the invitee has in hand, though what is unusual will, of course, vary with the reasons for which the invitee enters the premises. Indeed, I do not think Phillimore, L.J., in *Norman v. Great Western Railway Co.*, [1915] 1 K.B. 584 at 596, is speaking of individuals as individuals but of individuals as members of a type, e.g. that class of persons such as stevedores or seamen who are accustomed to negotiate the difficulties which their occupation presents. A tall chimney is not an unusual difficulty for a steeplejack though it would be for a motor mechanic. But I do not think a lofty chimney presents a danger less unusual for the last-named because he is particularly active or untroubled by dizziness."

At pp. 96-7 S.C.R., p. 351 D.L.R., Mr. Justice Spence continued:

It is perhaps a test of some value to determine whether a condition is one of unusual danger to investigate the ease by which the occupier might avoid it. In the present case, the learned trial judge said:

"A cocoa mat some place about would have been useful. Also

when the weather was such that people carried in wet snow a few strips of matting to the busy parts of the lobby or even at those busy places would have kept the floor nearly dry."

If the danger could have been prevented by these economical and easy precautions then surely a member of the public frequenting such a busy place as this bank would have been entitled to expect such precautions or others equally effective, and their absence would tend to make the danger an "unusual" one.

In *Veinot v. Kerr-Addison Mines Ltd.*, [1975] 2 S.C.R. 311 at p. 317, 51 D.L.R. (3d) 533 at p. 551, 3 N.R. 94, Mr. Justice Dickson, for the majority, said this:

The following excerpt from Lord Denning's judgment [*Pannett v. McGuinness & Co. Ltd.*, [1972] 3 W.L.R. 387] aptly expresses in my opinion the more salient points a judge should have in mind when considering intrusions upon land:

"The long and short of it is that you have to take into account all the circumstances of the case and see then whether the occupier ought to have done more than he did. (1) You must apply your common sense. You must take into account the gravity and likelihood of the probable injury. Ultra-hazardous activities require a man to be ultra-cautious in carrying them out. The more dangerous the activity, the more he should take steps to see that no one is injured by it. (2) You must take into account also the character of the intrusion by the trespasser. A wandering child or a straying adult stands in a different position from a poacher or a burglar. You may expect a child when you may not expect a burglar. (3) You must also have regard to the nature of the place where the trespass occurs. An electrified railway line or a warehouse being demolished may require more precautions to be taken than a private house. (4) You must also take into account the knowledge which the defendant has, or ought to have, of the likelihood of trespassers being present. The more likely they are, the more precautions may have to be taken."

In *Phillips v. Regina Public School District No. 4 Board of Education et al.* (1976), 1 C.C.L.T. 197, Mr. Justice Disbery of the Saskatchewan Court of Queen's Bench held that in the circumstances of that case, an icy sidewalk leading to the entrance way of a school was an unusual danger.

In the present case I have come to the conclusion that the servants of the defendant were negligent in not rectifying the dangerous condition that existed on the walkway at the time the plaintiff fell.

In all the circumstances of this case I have come to the conclusion that the condition that existed on that morning was an unusual danger.

As a matter of interest the Occupiers' Liability Act, 1980 (Ont.), c. 14, was proclaimed in force September 8, 1980. While it requires an occupier to exercise reasonable care to ensure that persons entering on premises, and the property brought on the premises by those persons, are reasonably safe, the Act does not affect rights and liabilities of persons in respect of causes of action arising before the Act came into force.

Having made this finding I must consider whether the plaintiff voluntarily assumed the risk of injury and if not whether she was guilty of contributory negligence. She certainly did not voluntarily assume the risk of injury. Having gone out the back door to deposit the luggage in the truck she was unable to regain entry to the school and had no alternative other than to walk around the back and side of the school and then prudently attempt to use the walkway running along the front of the school to gain access to the steps. The walkway was covered with ice together with some snow and there was not much she could do about it other than to try to walk down the snow- and ice-covered slope to the parking-lot except to continue along her way taking care that she did not fall. I accept her evidence that she was not in a hurry and in the circumstances cannot find that she was guilty of any contributory negligence. I therefore conclude that the defendant is fully responsible for the injuries sustained by

the plaintiff in the fall which occurred on January 15, 1973.

Liability for the fall which occurred in Italy, January, 1976

Following the 1973 fall the plaintiff was operated on. She had suffered a transverse fracture to the mid-patella with some comminution of the inferior pole and the fracture was displaced. The inferior pole was excised with three wires holding the patella ligament to the remaining proximal pole of the patella. It is of some significance that X-ray films taken on November 10, 1976, showed marked erosion and wearing of the femoral condyle with the patella fragment with narrowing of this joint space.

Mrs. Urzi claimed that in spite of some problem with her left knee when she was a young girl her knee had given her no trouble prior to this accident in 1973. The operation in 1973 did, however, reveal some changes in the area of the knee and some arthritis. She said she had continuing trouble with this knee prior to the January, 1976 accident but in spite of this went to Italy for a trip with her son. She took the aeroplane to Italy and then intended to take the train from Genoa to Florence. She said that she purchased her ticket and then stepped down a small step with her left foot forward. Her knee gave away and she fell to the floor fracturing the neck of her left femur. I see no reason to disbelieve Mrs. Urzi's evidence as to the reason for her fall and medically speaking it appears probable that her left leg and knee were weak. Mr. Justice Eveleigh in *Wieland v. Cyril Lord Carpets, Ltd.*, [1969] 3 All E.R. 1006 at pp. 1010-1, said this:

In the present case I am concerned with the extent of the harm suffered by the plaintiff as a result of actionable injury. In my view the injury and damage suffered because of the second fall are attributable to the original negligence of the defendants so as to attract compensation. If necessary I think the plaintiff's case can also be put against the defendant in another way. It can be said that it is foreseeable that one injury may affect a person's ability to cope with the vicissitudes of life and thereby be a cause of

another injury and if foreseeability is required, that is to say, if foreseeability is the right word in this context, foreseeability of this general nature will, in my view, suffice.

The second fall, in my opinion, was "attributable to the original negligence". I cannot find that the plaintiff herself was guilty of any negligence in connection with this second fall or was volens.

The plaintiff is therefore entitled to recover for damages sustained in this second accident.

The Public Authorities Protection Act

Section 11 of the Public Authorities Protection Act is pleaded as a defence to the action. The section, which has since been amended, read as follows:

11. No action, prosecution or other proceeding lies or shall be instituted against any person for an act done in pursuance or execution or intended execution of any statutory or other public duty or authority, or in respect of any alleged neglect or default in the execution of any such duty or authority, unless it is commenced within six months next after the act, neglect or default complained of, or, in case of continuance of injury or damage, within six months after the ceasing thereof.

Section 33, para. 8 of the Schools Administration Act, R.S.O. 1970, c. 424, which was in force at the time, read, in part, as follows:

33. Every board shall,

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8. keep the school buildings, fences and premises in proper repair ... and protect the property of the board;

Section 51(1) of the Public Schools Act, R.S.O. 1970, c. 385, which was in force at the time read, in part, as follows:

51(1) A public school board shall,

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(d) provide and pay,

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(ii) repairs to buildings.

It was submitted on behalf of the defendant that the present action is in respect of alleged neglect or default in the execution of a statutory or other public duty imposed by the Public Schools Act and the Schools Administration Act and that the action which was commenced more than six months after the fall is therefore statute-barred.

Counsel for the defendant relied on *Moffatt et al. v. Dufferin County Board of Education et al.*, [1973] 1 O.R. 351, 31 D.L.R. (3d) 143, a decision of the Ontario Court of Appeal. In that case the maintenance superintendent of a school asked a school teacher to provide the assistance of two boys to help in the school auditorium. The job involved raising a piano into an upright position. In the course of performing the job the piano slipped and fell injuring the infant plaintiff. In dealing with the provisions of the Act, Kelly J.A. for the Court, held that what the teacher did was done in pursuance of or intended pursuance of a public duty and that the limitation section of the Act ran in her favour as well as in favour of the board.

Reference was also made to a decision of Lief J. in *Piuti v. Board of Education of City of Toronto* (1974), 6 O.R. (2d) 172. The decision on the point is obiter. However, Mr. Justice Lief referred to the *Moffatt* case with approval and also referred to *Levine v. Board of Education of City of Toronto*, [1933] O.W.N. 152, affirmed *ibid.*, p. 238, where Sedgewick J. pointed out that the test was not whether the board had a duty to do what resulted in the injury but rather whether it was authorized to

do so.

It is my view that these decisions, in so far as the decisions relate to the Public Authorities Protection Act, are no longer good authority in view of the decision of the Supreme Court of Canada in *Berardinelli v. Ontario Housing Corp. et al.*, [1979] 1 S.C.R. 275, 90 D.L.R. (3d) 481, 8 C.P.C. 100. In *Berardinelli* the plaintiff was a tenant of a housing unit leased to him by the defendant. The plaintiff fell on a patch of ice located on land owned and occupied by the defendant surrounding the housing unit. The Act was pleaded as a defence and was held to provide a defence by the Judge of first instance and also by the Court of Appeal. Estey J. delivered the majority judgment allowing the appeal. Section 6(2) of the Housing Development Act, R.S.O. 1970, c. 213, as amended [1976, c. 44, s. 2], read as follows:

6(2) The Lieutenant Governor in Council may constitute corporations with such powers and duties as are deemed expedient to carry out any of the terms of any agreement made under subsection 1, or to carry out any building development or housing project, including power to plan, construct, and manage any building development or any housing project undertaken under any such agreement or otherwise, and including power to acquire and dispose of land in its own name.

The Ontario Court of Appeal concluded that management of housing units necessarily included the provision for the removal of snow and ice from the entrances and common areas and that the plaintiff was one of the members of the public for whose benefit the statutory authority in question was to be exercised.

In the Supreme Court of Canada, Mr. Justice Estey said this at pp. 279-81 S.C.R., pp. 491-2 D.L.R.:

The issue raised in this appeal turns upon the interpretation and interrelationship of s. 6(2) of The Housing Development Act and s. 11 of The Public Authorities Protection Act. The empowering provisions of s. 6(2) provide

for the granting of " ... such powers and duties as are deemed expedient to ... plan, construct and manage any building development or housing project ... ". These words would appear to be sufficiently broad to include virtually the entire range of executive and administrative activities in all of their operational facets and details in the establishment and operation of a housing facility. This provision must then be read in the light of the expression in s. 11 of The Public Authorities Protection Act " ... an act done in ... the execution ... of any statutory or other public duty or authority ... " so as to determine whether the protective net of s. 11 is thereby cast over the entire exercise of the power and duty to "plan, construct and manage" under s. 6(2); or alternatively extends only to those activities which have a public aspect as distinct from a private connotation.

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Section 11, being a restrictive provision wherein the rights of action of the citizen are necessarily circumscribed by its terms, attracts a strict interpretation and any ambiguity found upon the application of the proper principles of statutory interpretation should be resolved in favour of the person whose right of action is being truncated. There is little doubt about the presence of ambiguity and uncertainty of meaning in the section. This provision is found in a provincial statute which deals with a number of public officials including justices of the peace, constables, bailiffs, provincial judges and persons responding to a mandamus or mandatory order as well as other persons acting with reference to public order.

At p. 283 S.C.R., p. 495 D.L.R., he continued:

... the reference in s. 11 to "any statutory or other public duty" applies in the context of s. 6(2) of The Housing Development Act to those aspects of the statutory powers and duties there established which have a public aspect or connotation, and does not comprehend those planning, construction and managerial responsibilities (to paraphrase

s. 6(2)) which have a private executive or private administrative application or are subordinate in nature. To read the section otherwise would be to bring within the protective umbrella of the limitation imposed by s. 11 every aspect of the powers enunciated in s. 6(2) including operational matters, however insignificant in the spectrum of management activities for example, and would as already mentioned create different conditions of owner liability for two apparently similar housing facilities. Indeed, when urging such a reading of the section, counsel for the respondent candidly admitted that such was the result for which he was contending. Where one interpretation can be placed upon a statutory provision which would bring about a more workable and practical result, such an interpretation should be preferred if the words invoked by the Legislature can reasonably bear it; and this is particularly so where the alternative interpretation will reduce the right of recovery of members of the public who suffer loss or injury.

Estey J. concluded that on a proper construction of s. 11 the Court in *Berardinelli* was required to segregate the actions of the defendant into those which entail a public aspect or are inherently of a public nature as opposed to those which are more of an internal or operational nature having a predominantly private aspect. Applying the same test in this case to the words "keep the ... premises in proper repair", I have come to the conclusion that snow and ice removal on walkways are not actions inherently of a public nature but are more of an internal or operational nature having a predominantly private aspect.

I have also considered the case of *A.-G. Ont. v. Palmer et al.* (1979), 28 O.R. (2d) 35, 108 D.L.R. (3d) 349, 15 C.P.C. 125, in which the Court of Appeal, reversing the Divisional Court *loc. cit.* O.R. and D.L.R., p. 127 C.P.C., held that s. 11 of the Public Authorities Protection Act was a bar to an action arising as a result of the alleged negligent operation of a snow-plough engaged in the removal of snow from a public highway. The *Palmer* case is clearly distinguishable from the case before me in that in *Palmer* the ploughing of the roadway was done in direct fulfilment of the statutory obligation to

maintain and keep the highways in repair.

In these circumstances I concluded that s. 11 of the Public Authorities Protection Act has no application.

Damages

In assessing damages I should follow the usual rule where there are multiple accidents, that is, assess the damages in connection with the first accident as of the day before the second, then assess the global damages and then deduct the first assessment from the second thus arriving at the assessment relating to the second: *Berns et al. v. Campbell et al.* and two other actions (1974), 8 O.R. (2d) 680, 59 D.L.R. (3d) 44.

I have already set out some particulars of the injuries sustained by the plaintiff in the two falls. Following the fall at the school the plaintiff was operated upon and hospitalized. There was some arthritic change in the knee joint at the time of the operation. This arthritic condition has been aggravated and it was Dr. Lithwick's opinion that she should undergo excision of the remaining patella fragment. He was of the opinion that excision of this patella fragment would not fully relieve the joint problem and the plaintiff will undoubtedly have significant arthritic problems from this knee that may well require future surgery, either in the form of arthroplasty or fusion.

As a result of the fall in Italy she suffered a fractured left femoral neck. This fracture was treated by screw-and-bolt fixation. She has tenderness and discomfort in the hip which in the opinion of Dr. Lithwick would be alleviated by removal of the bolt and screw and it was Dr. Lithwick's view that following this operation she should expect good results with no future problems from the joint.

At the present time the plaintiff is substantially disabled and will not go out of the house alone. I assess the general damages in connection with the first injury, immediately prior

to the fall in Italy, at \$20,000 and the global general damage award at \$30,000. It is necessary to assess the special damages. The out-of-pocket expenses claimed in connection with the first accident for taxis and OHIP amount to \$1,051.53. In addition there is a claim made for loss of income from the time of the first accident extending through for one year only after the fall in Italy. Proof of the loss of income was far from satisfactory and I am only prepared to allow a figure of \$50 a month. The loss of income claim, therefore, from the time of the first fall until January, 1976, amounts to 36 months at \$50 a month for a total of \$1,800.

I allow \$600 for loss of income in connection with the second accident.

In connection with these allowances for loss of income I accept the evidence of the plaintiff that she was employed at home stitching up dresses and was paid by the garment before the first accident and I also accept her evidence that she intended to continue with this work. It appears to me that she was unable to carry out this activity for some considerable time as a result of the injuries sustained and the suggestion of counsel for the plaintiff that no claim would be made one year after the second accident was quite reasonable in all the circumstances.

Proof of out-of-pocket expenses in connection with the second action was far from satisfactory. No claim was made for hospital and medical expenses. Mr. Urzi had to fly from Canada to Rome and then accompany his wife back to Canada. Because of Mrs. Urzi's condition it was necessary to occupy nine seats for the return trip. On the evidence, and doing the best I can, I estimate the costs in connection with this further transportation at a minimum of \$2,000 and allow this amount.

For the above reasons there will be judgment for the plaintiff for \$35,451.53, together with costs.

Judgment for plaintiff.